

Jagdish Verma v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 26 May 2022 · WRIT-C No. 10514 of 2022 · WRIT-C No. 10514 of 2022
· **Writ disposed; consumer relegated to clause 6.5 objection; coercive action stayed eight weeks.**

HEADNOTE

Without examining the merits of a challenge to an electricity bill and recovery notice, the Division Bench disposed of the writ by relegating the consumer to an objection under clause 6.5 of the U.P. Electricity Supply Code, 2005 before the distribution licensee, to be decided within a fixed time after hearing, and stayed coercive action for eight weeks or until that objection is disposed of, whichever is earlier.

FACTUAL SUMMARY

Jagdish Verma approached the Allahabad High Court seeking certiorari to quash an electricity bill and notice dated 31 August 2019 issued against him by the distribution licensee, and a mandamus directing compensation for alleged illegal recovery and mental torture. Counsel for the Power Distribution Corporation stated on instructions that the petitioner may file an objection against the impugned demand, which would be decided in accordance with law within a time-bound period. The State and the licensee were heard.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

clause 6.5 objection as alternate remedy to writ against bill

HOLDING

A writ seeking to quash an electricity bill and notice and claiming compensation is disposed of without opinion on merits by granting liberty to submit an objection under Para 6.5 of the U.P. Electricity Supply Code, 2005 before the distribution licensee within four weeks; if submitted, the objection shall be decided in accordance with law within the next four weeks after reasonable opportunity of hearing, and no coercive action shall be taken on the demand for eight weeks or till disposal of the objection, whichever is earlier. ¶ 4-5

PRINCIPLE TAGS

clause-6.5-alternate-remedy-to-writ The writ to quash the electricity bill and notice was disposed without merits adjudication, relegating the consumer to a clause 6.5 objection before the licensee. ¶ 4

clause-6.5-statutory-remedy-disputed-bill The Court treated Para 6.5 of the Supply Code as the statutory path for the consumer's objection to the impugned demand, to be decided by the licensee after hearing. ¶ 3-4

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE ELECTRICITY BILL AND NOTICE DATED 31.08.2019, AND THE CLAIM FOR COMPENSATION FOR ALLEGED ILLEGAL RECOVERY

Court expressly declined to express any opinion on merits. ¶ 4